

STATE OF NEW YORK

5460--D

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. PAULIN, HEVESI, MEEKS, McDONALD, SAYEGH, KAY, MOLITOR, BLANKENBUSH, WRIGHT, SHIMSKY, BURDICK, RAJKUMAR, ROZIC, GALLAHAN, LASHER, ROSENTHAL, GRAY -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law and the public health law, in relation to the administration of immunizations by medical assistants

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 6526 of the education law is amended by adding a new subdivision 11 to read as follows:

11. Any medical assistant when drawing and administering an immunization in an outpatient office setting under the direct supervision of a physician, nurse practitioner, or physician assistant. For the purposes of this subdivision, a medical assistant is an unlicensed direct-care employee who is at least eighteen years of age, has completed an educational pathway acceptable to the department, and that performs clerical, administrative, and clinical tasks as set forth in department guidelines and as authorized by section twenty-one hundred thirteen of the public health law and pursuant to subdivision twenty-five of section sixty-five hundred thirty of this article.

§ 2. Section 6526 of the education law is amended by adding a new subdivision 12 to read as follows:

12. A certified nurse practitioner may delegate the task of drawing up and administering vaccinations to a medical assistant as defined in subdivision eleven of this section in outpatient office settings pursu-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD09017-08-6

1 ant to section twenty-one hundred thirteen of the public health law,
2 provided that it shall be professional misconduct to delegate profes-
3 sional responsibilities to a person when the licensee delegating such
4 responsibilities knows or has reason to know that such person is not
5 qualified, by training or by experience to perform them.

6 § 3. The public health law is amended by adding a new section 2113 to
7 read as follows:

8 § 2113. Administration of immunizations; medical assistants. Notwith-
9 standing any other law, rule, or regulation to the contrary, physicians,
10 nurse practitioners, and physician assistants are hereby authorized to
11 delegate the task of drawing up and administering vaccinations to
12 medical assistants as defined in subdivision eleven of section sixty-
13 five hundred twenty-six of the education law, in an outpatient office
14 setting; provided, however, that such vaccinations are recommended by
15 the commissioner, utilizing generally accepted medical standards and
16 taking into consideration recommendations of the American Academy of
17 Pediatrics, the American Academy of Family Physicians, the American
18 College of Obstetricians and Gynecologists, the American College of
19 Physicians, the Advisory Committee on Immunization Practices, or other
20 similar nationally or internationally recognized scientific organiza-
21 tions; and provided, further, that medical assistants receive appropri-
22 ate training and adequate supervision in administering immunizations
23 pursuant to regulations determined by the commissioner in consultation
24 with the commissioner of education.

25 § 4. This act shall take effect on the one hundred eightieth day after
26 it shall have become a law. Effective immediately, the addition, amend-
27 ment and/or repeal of any rule or regulation necessary for the implemen-
28 tation of this act on its effective date are authorized to be made and
29 completed on or before such effective date.